

ORDER ON MOTION HEARD, CONSIDERED AND GRANTED _____ DENIED _____ DONE & ORDERED <u>March 4, 2025</u> <u>Kelly Ayers</u> CIRCUIT JUDGE

IN THE CIRCUIT COURT OF THE THIRTEENTH
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

In re: the Marriage of:

SARAH HANSON
Petitioner,

Case No.: 24-DR-1150

and

Division: D

CHRISTOPHER HANSON
Respondent.

HUSBAND/RESPONDENT'S MOTION TO VACATE ORDER DENYING MOTION FOR ENFORCEMENT AND FINDING OF CONTEMPT UNDER RULE 12.540 AND FOR REHEARING UNDER RULE 12.530 AND IN THE ALTERNATIVE MOTION FOR CLARIFICATION AND/OR FORMAL WRITTEN ORDER ADDRESSING THE FACTS HEREIN AND THOSE INCLUDED IN THE ORIGINAL MOTION AT DOCKET #84

The Respondent, CHRISTOPHER HANSON, pro se, pursuant to Florida Family Law Rules of Procedure (FFLRP) 12.540 and 12.530, files this Motion to Vacate and for Rehearing of the Court's Order denying his Motion for Enforcement and Finding of Contempt (hereinafter "Order"), entered on [insert date of order], and states as follows:

1. On December 13, 2024, Respondent filed a Motion for Enforcement and Finding of Contempt (hereinafter "Enforcement Motion") due to Petitioner SARAH HANSON's willful and ongoing noncompliance with mandatory disclosure and certificate of compliance requirements under FFLRP 12.285, as ordered by this Court on October 28, 2024.
2. The Court denied Respondent's Enforcement Motion despite clear evidence of Petitioner's ongoing failure to comply with Rule 12.285(j), specifically regarding certification of no interest in relevant accounts or assets during the statutorily mandated timeframes.
3. The Court's Order appears to mistakenly conclude that Petitioner complied with the October 28, 2024, order requiring full compliance with Rule 12.285 within 10 days.

4. As detailed in the Enforcement Motion (at docket #84), Petitioner's "Certificates of Compliance" limiting her attestation to "the last 12 months" (from October 2023 forward), rather than the full statutory period required under Rule 12.285(d) and (j), which includes financial accounts and assets for at least two years prior to filing.
5. Not only did Wife fail to comply with the Mandatory disclosure and certificate of Compliance, but her failure fits perfectly with the delay, obstruct, and conceal techniques referenced throughout Husband's filings.
6. The timeline and everything Wife and her attorney have done specifically including discovery violations and this failure to comply with mandatory disclosures/certificate of compliance relate to their efforts to delay, obstruct and conceal financial evidence.
7. This issue – discovery into Wife's finances - is the entire case which has now encompassed every aspect of this family's being and threatens the well-being of the children.
8. The Court had the opportunity to push the case forward by simply requiring Wife to comply with the Certificate of Compliance requirement, with which it seemed that they admittedly couldn't fully comply.
9. It's very possible that simply forcing Wife to comply with the rule would have forced "the cat out of the bag," and put an end to this unnecessary conflict.
10. And even worse than that, Judge Ayers through denying this motion, ignores Mr. Davis's months of knowing non-compliance with the Mandatory Disclosure rule and a dozen plus discovery violations so severe that Husband filed his first bar complaint in 18 years of practice.
11. This viewed in conjunction with the Court's course of rulings demonstrates an enormous bias in favor of saving attorneys from any consequences even from blatantly unethical conduct which both the Court and Mr. Ayers have actively suppressed Husband from raising during hearings. (Docket #112, ¶¶33, A-N).
12. **Wife's noncompliance with Rule 12.285(j) is at the core of the dispute that's caused all of this wasted time and expense, and requiring compliance may resolve the discovery dispute plaguing this case.**

13. Not only did Wife fail to comply with Rule 12.285, but she used precise, misleading words to give the impression of compliance and at the recent hearing, it became clear that she knew she had not complied, and didn't intend to.
14. And somehow, without comment,
15. She and Mr. Davis actively and intentionally misled the Court and Husband.
16. When Husband pointed out the insufficiency to Mr. Davis by email, it was more waiting and hardship from these delay tactics.
17. Mr. Davis then simply asks to get away with the sneaky, dishonest tactics after months of discovery violations, and the Court simply agrees to it without further comment, explanation for justification, Judge Ayers simply excused all of Mr. Davis's antics and dishonesty to the detriment of Husband.
18. If the Court allows this order denying Husband's motion, the case will only further encourage dishonest and unethical litigation strategies and tactics in the family law system, to the detriment of Florida families.
19. There is no reasonable view of any facts in this case that justify denial of the motion for enforcement and contempt.
20. This ruling is a significant escalation in a biased course of events that consistently denies Husband due process and the family an efficient resolution to this very unfortunate and difficult situation. (Please see Docket #112, ¶33, A-N).
21. Husband made some allegations and shared some information with the Chief Judge by February 12, 2025, which clearly frustrated Judge Ayers based on her presentation during the February 12, 2025 hearing. (Please see Document #128 for a further discussion of concerns developed after the February 12, 2025 hearing, and certainly confirmed in the Court's order absent reconsideration.
22. Absent some correction, Judge Ayers (apparently in a manner Husband is helpless to prevent) is actively approving of and even rewarding unethical conduct from Mr. Davis to the detriment of husband, similar litigants and Florida families.
23. This particular order excusing all of Mr. Davis's outrageous and unethical conduct seems particularly cruel and spiteful given that a reasonable review of the facts should have resolved both the unethical conduct and the concealment.

24. Instead, the Court's order inexplicably supports concealment and the unethical conduct Mr. Davis has employed to keep this secret concealed.
25. Husband had one goal in this matter – to efficiently get much needed answers to move on with the coparenting relationship.
26. The unethical tactics, intentional delays, and discovery violations have caused active harm to Husband's health and the well-being of this family.
27. Despite a record full of pleas for Court attention, the Court has refused to even discuss Mr. Davis's conduct, let alone hold him accountable.
28. In fact, both Judge Ayers and Mr. Davis actively prevented Husband from speaking about the numerous ethical violations at different hearings. (Docket #90. p.13, L8-20, Docket #118 .p 15, L1-12).
29. Respondent seeks relief under Rule 12.540 to vacate the Order due to mistake, excusable neglect, fraud, or misrepresentation by Petitioner, and under Rule 12.530 for rehearing, as the denial overlooks critical evidence of noncompliance and misapplies the law, prejudicing Respondent's and the children's rights.
30. The Court may have overlooked some of the facts above and hopefully the Court will hold Mr. Davis accountable for this outrageous shirking of professional responsibility and any reasonable ethical standards.
31. It's become entirely clear from one particular fact that Mr. Davis confirmed by email and also addressed in front of this Court on December 13, 2024 - that Wife and Mr. Davis cannot logically be offering a complete or accurate statement of Mrs. Hanson's finances.
32. While Husband understands that the post marital agreement provides better than a 50/50 split for Husband (given current disclosures), it does not mean that the agreement is "reasonable" which simply cannot be determined without additional discovery into Wife's finances – the target of all the obstruction tactics from Wife and Mr. Davis.
33. On the financial affidavits, Wife's assets over liabilities with what's disclosed to date is \$104,611, while Husband's is in excess of \$800,000. (Docket #34, #43).

34. Wife's refusal of Husband's offer to void the PMA tantamount to proof the PMA is in fact unreasonable for Husband. (Docket # 90 – transcript of December 19, 2024 status conference, p.7, L12-20).
35. There is simply no logical explanation for objecting to an agreement that is costing Wife money and forcing the family to incur significant costs financially and in overall well-being other than that Wife has not yet revealed the full story.
36. Petitioner's Certificates of Compliance misrepresent her adherence to Rule 12.285(j), as they fail to certify under oath the absence of interest in accounts or assets during the relevant statutory period. This misrepresentation, combined with her piecemeal production of documents (e.g., Ascensus records trickled out from October 2023, then back to 2022, per Enforcement Motion ¶¶ 10-13), suggests a deliberate attempt to conceal financial information, prejudicing Respondent's ability to assess the marital estate.
37. Prejudice to Respondent: The Court's denial perpetuates Petitioner's noncompliance, denying Respondent access to discovery critical to this case's central issue—Petitioner's finances—despite nine months of delay since the deadline (June 28, 2024, per stipulation) and the Court's October 28, 2024, order.
38. Pursuant to Rule 12.540(b)(1) and (3), relief is warranted within one year of the Order (timely here) to correct these errors and prevent manifest
39. The Court's denial of the Enforcement Motion (Docket #84) overlooks uncontroverted evidence in the Enforcement Motion and attached correspondence (Docket #61, P.1, December 6, 2024 email) demonstrating Petitioner's noncompliance. Specifically:
40. Petitioner's Certificates fail to meet Rule 12.285(j)'s requirement to certify under oath the absence of interest in all relevant accounts/assets during the statutory timeframe (Docket #84, ¶¶ 15-21).
41. Petitioner's counsel ignored Respondent's good-faith attempt to resolve the deficiency on December 6, 2024, reinforcing willful noncompliance (¶ 18).

42. The Court is excusing intentionally misleading conduct, including the manner in which the certificate of compliance was prepared, (only providing certification since October 2023) which obviously does not comply with the rule.
43. That is the precise opposite of what the law would require in this situation especially given the dozen plus discovery/ethics violations, all of which relate to this delay, obstruct, conceal strategy.
44. The Court failed to exercise its broad discretion under Rule 12.380(b)(2)(C) to sanction Petitioner's noncompliance by, e.g., allowing Respondent's requested Chase Bank subpoena or striking Petitioner's ability to oppose financial discovery.
45. If there were ever a set of facts that required sanctions to include overruling discovery objections into Wife's finances, it is precisely this case where that is the sole issue that required court involvement which has now devolved into frivolous motions threatening the well-being of our children.
46. The intent behind mandatory disclosures and broad discovery in divorce actions is rooted in the principles of fairness, transparency, and equity.
47. The aim is to foster trust and efficiency, level the playing field, especially in cases where one spouse might not have equal access to marital property – such as nearly all of Wife's income the past several years under the present facts.
48. Absent some action from the Court to correct this ruling, the parties will suffer from a continuing decline in trust for each other and the system as the inefficiency seems to only increase and cost the family more.
49. Clearly, there is a betrayal that is hidden, and if the Court continues to shield that and unethical conduct to conceal it from any scrutiny, this family will simply be unable to move on to the effective coparenting relationship due to the Court's conduct.
50. Respondent is severely prejudiced, as Petitioner's delay tactics—spanning nearly nine months—continue unabated, obstructing resolution of this case and exacerbating family stress.

REQUEST FOR RELIEF

WHEREFORE, Respondent, CHRISTOPHER HANSON, respectfully requests that this Court:

A. Vacate the Order under Rule 12.540(b)(1) and (3) due to mistake, fraud, or misrepresentation, and reinstate the Enforcement Motion for reconsideration;

B. Grant a rehearing under Rule 12.530 to correct factual and legal errors in denying the Enforcement Motion;

C. Upon rehearing or vacatur, enter an order:

Requiring Petitioner to immediately comply with Rule 12.285, including a proper Certificate of Compliance under Rule 12.285(j) covering the full statutory period (January 2022 onward);

Finding Petitioner in contempt for willful noncompliance with the October 28, 2024, order;

Imposing sanctions under Rule 12.380, including authorization of the Chase Bank subpoenas and waiver of any discovery objections from wife related to financial documents and evidence;

Awarding Respondent attorney's fees and costs, including compensation for his pro se efforts;

D. Write a detailed order incorporating the facts above into the Court's decision to deny the motion and clarifying any grounds for failing to sanction the numerous discovery violations.

E. Grant such further relief as the Court deems just and proper.

CERTIFICATION OF GOOD FAITH

Respondent certifies that this motion is filed in good faith and not for delay, having attempted to resolve Petitioner's noncompliance via correspondence on December 6, 2024 (Exhibit B), to which Petitioner's counsel did not respond.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to Scott Paul Davis, Esq., via email to: scott@davislawtampa.com; and service@davislawtampa.com; and all others designated on e-service list on this 26th day of February, 2025.

/s/ Chris Hanson

Chris Hanson

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